



Competition and Consumer Amendment (Unfair Trading Practices) Act 2026

No. 64, 2026

An Act to amend the *Competition and Consumer Act 2010*, and for related purposes

Note: An electronic version of this Act is available on the Federal Register of Legislation
(<https://www.legislation.gov.au/>)

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Competition and Consumer Amendment (Unfair Trading Practices) Act 2026

No. 64, 2026

An Act to amend the *Competition and Consumer Act 2010*, and for related purposes

[Assented to 6 July 2026]

The Parliament of Australia enacts:

1 Short title

This Act is the *Competition and Consumer Amendment (Unfair Trading Practices) Act 2026*.

No. 64, 2026 *Competition and Consumer Amendment (Unfair Trading Practices) Act* 1
2026

2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

Commencement information		
Column 1	Column 2	Column 3
Provisions	Commencement	Date/Details
1. The whole of this Act	1 July 2027.	1 July 2027

Note: This table relates only to the provisions of this Act as originally enacted. It will not be amended to deal with any later amendments of this Act.

- (2) Any information in column 3 of the table is not part of this Act. Information may be inserted in this column, or information in it may be edited, in any published version of this Act.

3 Schedules

Legislation that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

Schedule 1—Amendments

Part 1—Unfair trading practices

Competition and Consumer Act 2010

1 Subsection 6(3)

After “2-2,”, insert “2-4,”.

2 After subsection 6(3A)

Insert:

- (3B) In addition to the effect that this Act, other than Parts IIIA, VIIA and X, has as provided by another subsection of this section, the provisions of Part 2-4 of the Australian Consumer Law have, by force of this subsection, the effect they would have if:
- (a) those provisions were, by express provision, confined in their operation to the supply of, or an offer to supply, postal, telegraphic, telephonic or other like services; and
 - (b) a reference in the provisions of Part XI to a corporation included a reference to a person not being a corporation.

3 Subsection 6(4)

After “2-2,”, insert “2-4,”.

4 After paragraph 134A(2)(a)

Insert:

- (aa) a provision of Part 2-4;

5 Section 134C (after table item 1)

Insert:

- | | | |
|----|-------------------------|--|
| 1A | a provision of Part 2-4 | <ul style="list-style-type: none">(a) if the person is a listed corporation—600 penalty units; or(b) if the person is a body corporate other than a listed corporation—60 penalty units; or(c) if the person is not a body corporate—12 penalty units. |
|----|-------------------------|--|

6 Subsection 2(1) of Schedule 2

Insert:

unfair trading practices: see subsection 28B(2).

7 At the end of Chapter 2 of Schedule 2

Add:

Part 2-4—Unfair trading practices

28B Unfair trading practices towards consumers

- (1) A person must not, in trade or commerce, engage in unfair trading practices.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person engages in *unfair trading practices* if, and only if, in connection with supply of, or an offer to supply, goods or services to a consumer, the person engages in conduct that:
- (a) does or is likely to do either or both of the following:
 - (i) manipulate the consumer;
 - (ii) unreasonably distort the environment in which the consumer makes, or is likely to make, a decision; and
 - (b) causes or is likely to cause detriment (whether financial or otherwise) to the consumer.
- (3) Subsection (1) does not apply if the consumer is a body corporate.

- (4) Subsection (1) does not apply if the supply is in the course of the consumer carrying on a business.
- (5) A person who wishes to rely on subsection (3) or (4) in proceedings bears an evidential burden in relation to that matter.
- (6) Without limiting subsection (2), the following are examples of conduct that may be unfair trading practices:
 - (a) impeding the consumer's ability to exercise legal rights, or seek legal remedies;
 - (b) failing to disclose material information to the consumer;
 - (c) disclosing material information to the consumer in a complex, ineffective, unclear, unintelligible, ambiguous, untimely or overwhelming way;
 - (d) creating an environment (including by using design elements in digital interfaces) which places the consumer under unreasonable pressure in relation to, or obstructs the consumer from, making or fulfilling the consumer's decision.
- (7) Nothing in Part 3-1 (which is about unfair practices) limits by implication this section.

8 After subparagraph 224(1)(a)(iia) of Schedule 2

Insert:

- (iib) a provision of Part 2-4 (which is about unfair trading practices);

9 Subsection 224(3) of Schedule 2 (after table row 2A)

Insert:

2B	a provision of Part 2-4	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
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10 Subsection 224(3A) of Schedule 2

After "2A," insert "2B,".

11 Paragraph 247(1)(a) of Schedule 2

Omit "or 2-3", substitute ", 2-3 or 2-4".

12 After subparagraph 248(1)(a)(ia) of Schedule 2

Insert:

- (ib) a provision of Part 2-4 (which is about unfair trading practices);

13 Subsection 251(1) of Schedule 2

Omit “or 2-2”, substitute “, 2-2 or 2-4”.

Part 2—Drip pricing

Competition and Consumer Act 2010

14 Subsection 2(1) of Schedule 2

Insert:

base price: see subsection 48A(6).

transaction based charge: see subsections 48A(7) and (8).

15 At the end of Division 4 of Part 3-1 of Schedule 2

Add:

48A Transaction based charges to be displayed in certain circumstances

Requirement to display

- (1) This section applies in relation to goods or services of a kind ordinarily acquired for personal, domestic or household use or consumption.
- (2) A person who, in trade or commerce, in offering to supply goods or services to another person, displays a base price for any of the goods or services must display in accordance with subsection (3) the following information for any transaction based charge for the supply:
 - (a) either:
 - (i) if the amount of the transaction based charge can be calculated—the amount of the transaction based charge;
or
 - (ii) in any other case—the method for calculating the transaction based charge;
 - (b) that it is a per transaction charge;
 - (c) whether the transaction based charge is or may be payable;
 - (d) whether or not the base price displayed includes the transaction based charge.

Note 1: A pecuniary penalty may be imposed for a contravention of this subsection.

Note 2: This subsection applies each time a base price is displayed. The base price, and the information required to be displayed, could be different at different stages of the purchase process.

- (3) For the purposes of subsection (2), the information must be displayed:
- (a) while the base price is displayed; and
 - (b) in a legible, prominent and unambiguous way; and
 - (c) in close proximity to the base price.
- (4) Subsection (2) does not apply if the offer is made exclusively to a body corporate.
- (5) A person who wishes to rely on subsection (4) in proceedings bears an evidential burden in relation to that matter.

Base price

- (6) An amount payable by a purchaser for a supply of goods or services is a **base price** for the goods or services if it includes an amount payable for the goods or services themselves.

Example: An amount that is merely a tax, duty, fee or levy payable in relation to a supply is not a base price.

Transaction based charge

- (7) A charge (or part of a charge) of any description is a **transaction based charge** for a supply of goods or services if:
- (a) it is or may be payable by the purchaser for the supply of the goods or services; and
 - (b) it is not an amount payable for the goods or services themselves; and
 - (c) it is, or would be, payable at the same time as an amount payable for the goods or services themselves.
- (8) However, the following are not **transaction based charges**:
- (a) a charge (or part of a charge) that is payable at the option of the purchaser;

- (b) a payment surcharge (within the meaning of Part IVC of the Competition and Consumer Act);
 - (c) any tax, duty, fee, levy or charge imposed on the supplier;
 - (d) any amount paid or payable by the supplier with respect to any tax, fee, levy or charge if:
 - (i) the amount is paid or payable under an agreement or arrangement made under a law of the Commonwealth, a State or a Territory; and
 - (ii) the tax, duty, fee, levy or charge would have otherwise been payable by another person in relation to the supply;
 - (e) a charge (or part of a charge) prescribed for the purposes of this paragraph.
- (9) Without limiting subsection 33(3A) of the *Acts Interpretation Act 1901* or paragraph (8)(e) of this section, regulations made for the purposes of that paragraph may prescribe the following:
- (a) that a charge (or part of a charge) is prescribed only in specified circumstances;
 - (b) different circumstances for different charges (or parts of charges).

General

- (10) This section does not limit section 48.

Part 3—Subscription contracts

Competition and Consumer Act 2010

16 Subsection 2(1) of Schedule 2

Insert:

excluded subscription contract: see subsection 48C(1).

meets the consumer requirement: see subsection 48G(1).

meets the small business requirement: see subsection 48G(2).

17 Subsection 2(1) of Schedule 2 (definition of *standard form contract*)

Repeal the definition, substitute:

standard form contract:

- (a) in Part 2-3 and sections 243B and 250—has a meaning affected by section 27; and
- (b) in Division 4A of Part 3-1—has a meaning affected by section 48H.

18 Subsection 2(1) of Schedule 2

Insert:

subscriber, in relation to a contract for supply of goods or services, means a person who incurs, or may incur, liability to pay for a supply under the contract.

subscription contract: see subsection 48B(1).

19 At the end of section 27 of Schedule 2

Add:

- (4) This section does not apply for the purposes of Division 4A of Part 3-1.

Note: Section 48H deals with standard form contracts for the purposes of Division 4A of Part 3-1.

20 After Division 4 of Part 3-1 of Schedule 2

Insert:

Division 4A—Subscription contracts

Subdivision A—Preliminary

48B Subscription contracts

- (1) A contract is a *subscription contract* if it:
- (a) meets the requirement in subsection (2), (3), (5) or (6); and
 - (b) is not an excluded subscription contract.

Note: A contract may meet the requirement in more than one of subsections (2), (3), (5) and (6).

Indefinite period

- (2) For the purposes of paragraph (1)(a), the requirement is that the contract contains terms that have the effect of providing:
- (a) for recurring or continuing supply of goods or services for an indefinite period; and
 - (b) for a person to automatically incur liability to pay for the supplies or continuing supply; and
 - (c) a right for that person to end the contract.

Fixed period

- (3) For the purposes of paragraph (1)(a), the requirement is that the contract contains terms that have the effect of providing:
- (a) for supply of goods or services in, or recurring or continuing supply of goods or services for, a fixed period; and
 - (b) for supply, or continuing supply, of goods or services to continue after the end of the fixed period unless a party to the contract stops the supply or continuing supply or the contract is terminated; and
 - (c) for a person to automatically incur liability to pay for the supplies or continuing supply; and
 - (d) a right for that person to end the contract.

- (4) For the purposes of paragraphs (2)(b) and (3)(c), disregard any supply or continuing supply that is free of charge.

Initial free period

- (5) For the purposes of paragraph (1)(a), the requirement is that the contract contains terms that have the effect of providing:
- (a) for supply of goods or services in, or recurring or continuing supply of goods or services for, an initial period free of charge; and
 - (b) for a person to automatically incur liability to pay for supply of goods or services after the initial period; and
 - (c) a right for that person to end the contract before the liability is incurred.

Initial discount period

- (6) For the purposes of paragraph (1)(a), the requirement is that the contract contains terms that have the effect of providing:
- (a) for supply of goods or services in, or recurring or continuing supply of goods or services for, an initial period; and
 - (b) for a person to incur liability to pay for supply of goods or services in or for the initial period at a rate; and
 - (c) for that person to automatically incur liability to pay for supply of goods or services after the initial period at a higher rate; and
 - (d) a right for that person to end the contract before the liability to pay at the higher rate is incurred.

48C Excluded subscription contracts

- (1) The following contracts are *excluded subscription contracts*:
- (a) a lease;
 - (b) a licence in respect of real property;
 - (c) a contract of hire-purchase;
 - (d) a contract for payment in instalments;
 - (e) a contract for supply of childcare;
 - (f) a contract for supply by a pre-school or school of tuition at a pre-school, pre-primary, primary or secondary level;

- (g) a contract of a kind prescribed for the purposes of this paragraph.
- (2) Without limiting subsection 33(3A) of the *Acts Interpretation Act 1901* or paragraph (1)(g) of this section, regulations made for the purposes of that paragraph may prescribe the following:
 - (a) that a kind of contract is a prescribed kind of contract only in specified circumstances;
 - (b) different circumstances for different kinds of contract.

Subdivision B—Information requirements

48D Statement and information that must be disclosed when offering goods or services under a subscription contract

Scope

- (1) This section applies if:
 - (a) a person (the **supplier**), in trade or commerce, offers to supply, under a contract, goods or services; and
 - (b) if the contract were entered, the contract would be a subscription contract.

Requirement to disclose

- (2) The supplier must, when making the offer, disclose, in accordance with subsection (3):
 - (a) a statement that, if entered, the contract would be a subscription contract; and
 - (b) information about the matters mentioned in subsection (4).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Manner of disclosure

- (3) The statement and information must be disclosed:
 - (a) if the goods or services are of a kind (if any) prescribed for the purposes of this paragraph—in the manner prescribed for goods or services of that kind; or

- (b) in circumstances (if any) prescribed for the purposes of this paragraph—in the manner prescribed for those circumstances; or
- (c) in any other case—either:
 - (i) in a comprehensible, audible and unambiguous way within a reasonable time before a person could agree to enter the contract; or
 - (ii) in a legible, prominent and unambiguous way in close proximity to where a person (other than the supplier) can agree to enter the contract.

Information to be disclosed

- (4) Information about the following matters must be disclosed:
 - (a) liabilities to pay that a party to the contract (other than the supplier) would or may incur under the contract;
 - (b) period of the contract;
 - (c) renewal, extension or other continuation of the contract;
 - (d) any notice required before a party to the contract (other than the supplier) can end the contract;
 - (e) how a party to the contract (other than the supplier) can end the contract;
 - (f) any matter prescribed for the purposes of this paragraph.

Exception

- (5) Subsection (2) does not apply in the circumstances (if any) prescribed for the purposes of this subsection.

48E Information to be given in relation to subscription contracts in effect

Requirement to give information

- (1) If:
 - (a) a person, in trade or commerce, supplies goods or services under a subscription contract prescribed for the purposes of this subsection; and

- (b) the contract meets the consumer requirement or meets the small business requirement;

the person must, while the contract is in effect, give the subscriber, in accordance with subsection (2), the information prescribed for the purposes of this subsection at each time prescribed for the purposes of this subsection.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Manner of giving information

- (2) The information must be given:
 - (a) in a legible, prominent and unambiguous way; and
 - (b) if a manner is prescribed for the purposes of this paragraph—in that manner.

Regulations

- (3) Without limiting subsection 33(3A) of the *Acts Interpretation Act 1901*, subsection 13(3) of the *Legislation Act 2003* or subsections (1) or (2) of this section, regulations made for the purposes of subsection (1) or (2) of this section may prescribe the following:
 - (a) all subscription contracts or a class of subscription contract;
 - (b) different information, times or manners for different classes of subscription contract;
 - (c) different information, times or manners for subscription contracts in different circumstances;
 - (d) different times or manners for different information.

Exception

- (4) Subsection (1) does not apply in the circumstances (if any) prescribed for the purposes of this subsection.

Subdivision C—Ending subscription contracts

48F Exit method

Requirement to provide a way to end the contract

- (1) A person (the **supplier**) who, in trade or commerce, supplies goods or services under a subscription contract that meets the consumer requirement or meets the small business requirement must:
 - (a) provide a way for the subscriber to end the contract; and
 - (b) ensure that each way the supplier provides for the subscriber to end the contract:
 - (i) is easy to find; and
 - (ii) is straightforward; and
 - (iii) requires the subscriber to take only steps that are reasonably necessary to end the contract and protect the subscriber's interests; and
 - (c) if subsection (2) applies—ensure that one of the ways the supplier provides for the subscriber to end the contract is online.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) This subsection applies if:
 - (a) the subscriber enters the contract online; or
 - (b) the supplier provides an online way of entering into a contract that, if entered, would be a subscription contract for the same kind of goods or services.

Exception

- (3) Subsection (1) does not apply in the circumstances (if any) prescribed for the purposes of this subsection.

Subdivision D—Other matters

48G Meeting the consumer requirement or the small business requirement

Meeting the consumer requirement

- (1) A contract ***meets the consumer requirement*** if it is a contract for supply of goods or services under which an individual acquires the goods or services wholly or predominantly for personal, domestic or household use or consumption.

Meeting the small business requirement

- (2) A contract ***meets the small business requirement*** if:
- (a) it is a standard form contract for supply of goods or services; and
 - (b) the subscriber satisfies either or both of the following conditions:
 - (i) the subscriber makes the contract in the course of carrying on a business and at a time when the subscriber employs fewer than 100 persons;
 - (ii) the subscriber's turnover, worked out under subsection (4) for the subscriber's last income year (within the meaning of the *Income Tax Assessment Act 1997*) that ended at or before the time when the contract is made, is less than \$10,000,000.

Counting the number of persons employed

- (3) In counting for the purposes of subparagraph (2)(b)(i) the number of persons that a person employs:
- (a) a casual employee is not to be counted unless employed on a regular and systematic basis; and
 - (b) a part-time employee (including a part-time casual employee counted under paragraph (a) of this subsection) is to be counted as an appropriate fraction of a full-time equivalent.

Working out a subscriber's turnover

- (4) For the purposes of subparagraph (2)(b)(ii), a subscriber's turnover for a period is the sum of the values of all supplies the subscriber made during the period, other than the following:
 - (a) supplies that are input taxed;
 - (b) supplies that are not for consideration (and are not taxable supplies under section 72-5 of the *A New Tax System (Goods and Services Tax) Act 1999*);
 - (c) supplies that are not made in connection with an enterprise that the subscriber carries on;
 - (d) supplies that are not connected with the indirect tax zone.
- (5) Expressions used in subsection (4) that are also used in the *A New Tax System (Goods and Services Tax) Act 1999* have the same meaning as in that Act.

48H Standard form contracts for the purposes of this Division

- (1) For the purposes of this Division, if a party to a proceeding alleges that a contract is a standard form contract, it is presumed to be a standard form contract unless another party to the proceeding proves otherwise.
- (2) For the purposes of this Division, in determining whether a contract for supply of goods or services is a standard form contract, a court may take into account such matters as it thinks relevant, but must take into account the following:
 - (a) whether the supplier has all or most of the bargaining power relating to the transaction;
 - (b) whether the supplier has made another contract, in the same or substantially similar terms, prepared by the supplier, and, if so, how many such contracts the supplier has made;
 - (c) whether the contract was prepared by the supplier before any discussion relating to the transaction occurred between the parties;
 - (d) whether the subscriber was, in effect, required either to accept or reject the terms of the contract (other than the terms referred to in subsection (4)) in the form in which they were presented;

- (e) whether the subscriber was given an effective opportunity to negotiate the terms of the contract that were not the terms referred to in subsection (4);
 - (f) whether the terms of the contract (other than the terms referred to in subsection (4)) take into account the specific characteristics of the subscriber or the particular transaction;
 - (g) any other matter prescribed by the regulations.
- (3) For the purposes of this Division, a contract may be determined to be a standard form contract despite the existence of one or more of the following:
- (a) an opportunity for the subscriber to negotiate changes, to terms of the contract, that are minor or insubstantial in effect;
 - (b) an opportunity for the subscriber to select a term from a range of options determined by the supplier;
 - (c) an opportunity for a party to another contract or proposed contract to negotiate terms of the other contract or proposed contract.
- (4) For the purposes of paragraphs (2)(d), (e) and (f), the terms are:
- (a) a term required, or expressly permitted, by a law of the Commonwealth or of a State or Territory; or
 - (b) a term included in the contract, or taken to be so included, by operation of a law of the Commonwealth, or of a State or Territory, that regulates the contract.

21 Review of operation of amendments made by this Part

- (1) The Commonwealth Minister (within the meaning of Schedule 2 to the *Competition and Consumer Act 2010*) must cause a review to be conducted of the operation, during the 2 years from the commencement of this Part, of the following:
- (a) the amendments made by this Part;
 - (b) any legislative instruments made for the purposes of Division 4A of Part 3-1 of Schedule 2 to the *Competition and Consumer Act 2010*.
- (2) The review must be completed, and a written report on the review must be given to the Commonwealth Minister, within 6 months after the end of those 2 years.

- (3) The Commonwealth Minister must cause a copy of the report of the review to be tabled in each House of the Parliament within 15 sitting days of that House after the Commonwealth Minister receives the report.

Part 4—Application provisions

Competition and Consumer Act 2010

22 In the appropriate position in Chapter 6 of Schedule 2

Insert:

Part 10—Application provisions relating to the Competition and Consumer Amendment (Unfair Trading Practices) Act 2026

311 Application—unfair trading practices

Section 28B, inserted by the *Competition and Consumer Amendment (Unfair Trading Practices) Act 2026*, applies in relation to conduct that occurs on or after commencement of Part 1 of Schedule 1 to that Act, whether in connection with a supply or an offer to supply made before, on or after that commencement.

312 Application—subscription contracts

- (1) Sections 48B, 48E and 48F, inserted by the *Competition and Consumer Amendment (Unfair Trading Practices) Act 2026*, apply in relation to a contract entered into on or after the commencement of Part 3 of Schedule 1 to that Act.
- (2) Sections 48B, 48E and 48F do not apply to a contract entered into before that commencement. However:
 - (a) if the contract is renewed, extended or otherwise continued on or after that commencement—sections 48B, 48E and 48F apply to the contract as renewed, extended or otherwise continued, on and from the day on which the renewal, extension or other continuation takes effect; or
 - (b) if the contract is varied on or after that commencement and paragraph (a) has not already applied in relation to the contract—sections 48B, 48E and 48F apply to the contract as

varied, on and from the day on which the variation takes effect.

313 Acquisition of property

- (1) Sections 28B, 48E and 48F do not apply to the extent that:
- (a) the operation of the sections would result in an acquisition of property from a person otherwise than on just terms; and
 - (b) the acquisition of property would be invalid because of paragraph 51(xxxi) of the Constitution.

- (2) In this section:

acquisition of property has the same meaning as in paragraph 51(xxxi) of the Constitution.

just terms has the same meaning as in paragraph 51(xxxi) of the Constitution.

*[Minister's second reading speech made in—
House of Representatives on 1 April 2026
Senate on 22 June 2026]*

(45/26)
